
Notice of Dissatisfaction — Engineer's Commercial Assessment ENG-NRB4-0038

Nandira River Bridge Project — Package NRB-4

Document Reference:	CTR-NRB4-0098
Date:	25-Mar-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Contractor, Commercial Manager, Sagara Constructions Pvt. Ltd.
To:	Engineer, Meridian Engineering Consultants
CC:	National Highways Infrastructure Authority

Subject: Notice of Dissatisfaction — Engineer's Commercial Assessment ENG-NRB4-0038 dated 04-Mar-2022

We refer to the Engineer's Commercial Assessment ENG-NRB4-0038 dated 04-Mar-2022, determining our Commercial Notice CTR-NRB4-0091 dated 10-Feb-2022 and rejecting the position set out in that notice and in the supporting analysis we have reviewed, including Contract Interpretation Memorandum CIM-NRB4-002.

We confirm, for the avoidance of doubt, that we do not dispute any factual or arithmetic matter recorded in ENG-NRB4-0038, the Financial Calculation Sheet FCS-NRB4-011, or Interim Payment Certificate IPC-NRB4-011. The value of Variation VO-NRB4-004, the cumulative figures, and the amounts certified and paid are all agreed. Our dissatisfaction is confined entirely to the Engineer's contractual interpretation, namely: (a) that Sub-Clause 13.3 requires a Variation's value to be treated identically to other work for Retention purposes; and (b) that Contract Data Section 6's reference to "each amount otherwise due" admits no distinction based on the nature or origin of that amount. We maintain the interpretation set out in CTR-NRB4-0091 remains the better reading of the Contract.

Pursuant to Sub-Clause 20.4, we hereby give notice of our dissatisfaction with ENG-NRB4-0038, within 28 days of its issue, and confirm this dispute is referable to the Dispute Adjudication Board in accordance with the Contract, should it not be resolved by other means in the interim.

We remain open to amicable discussion of this matter in accordance with Sub-Clause 20.5 before any formal referral is pursued.

Regards,
Commercial Manager
Sagara Constructions Pvt. Ltd.